

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #6	CCRB Case #: 202103484	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/08/2021 9:30 AM	Location of Incident: § 87(2)(b)	Precinct: 105	18 Mo. SOL 12/8/2022	EO SOL 12/8/2022	
Date/Time CV Reported Wed, 06/09/2021 11:31 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 06/09/2021 11:31 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Nick Milentijevic	03660	930738	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Erin Kennedy	08697	963591	105 PCT
2. POM Marcelino Roman	30168	965481	105 PCT
3. LT Anthony Gulotta	00000	919140	105 PCT
4. POM John Venza	31224	954400	105 PCT
5. POM Anthony Franzini	00880	966065	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Nick Milentijevic	Abuse: Sergeant Nick Milentijevic forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
B.SGT Nick Milentijevic	Abuse: Sergeant Nick Milentijevic searched § 87(2)(b)	§ 87(2)(b)
C.SGT Nick Milentijevic	Abuse: Sergeant Nick Milentijevic entered § 87(2)(b) in Queens.	§ 87(2)(b)
D.SGT Nick Milentijevic	Abuse: Sergeant Nick Milentijevic searched § 87(2)(b)'s recording device.	§ 87(2)(b)
E.SGT Nick Milentijevic	Abuse: Sergeant Nick Milentijevic deleted information on § 87(2)(b)'s electronic device.	§ 87(2)(b)

Case Summary

On June 9, 2021, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On June 8, 2021, § 87(2)(b) was home in a room he rented from a church located at § 87(2)(b). Sgt. Nick Milentijevic of the 105th Precinct responded to the location, knocked on § 87(2)(b)'s bedroom door, and told him to step out. § 87(2)(b) complied and Sgt. Milentijevic placed § 87(2)(b) in handcuffs to remove him to the hospital (**Allegation A – Abuse of Authority: § 87(2)(g)**). Sgt. Milentijevic searched § 87(2)(b) and removed his phone and his keys from his person (**Allegation B – Abuse of Authority: § 87(2)(g)**). Sgt. Milentijevic entered § 87(2)(b)'s room and placed § 87(2)(b)'s phone on a dresser (**Allegation C – Abuse of Authority: § 87(2)(g)**). Sgt. Milentijevic searched § 87(2)(b)'s phone and deleted a video (**Allegations D and E – Abuse of Authority: § 87(2)(g)**). No arrests or summonses resulted from this incident.

Five BWC videos of this incident were obtained and can be found in IAs #31-36. A summary of the footage can be found in IA #40 (**Board Review 01**).

Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Nick Milentijevic forcibly removed § 87(2)(b) to the hospital.

Allegation B – Abuse of Authority: Sergeant Nick Milentijevic searched § 87(2)(b)

On June 8, 2021, § 87(2)(b) was inside of his room located at § 87(2)(b) in Queens and working. § 87(2)(b) was previously training to become a priest but was kicked out of the program in May of 2020. § 87(2)(b) rented the room in the church while he was in the program. § 87(2)(b) received a letter asking him to move out of the residence by June 30, 2021. On June 8, 2021, § 87(2)(b) who worked for the § 87(2)(b) along with a security guard, told § 87(2)(b) that since he was no longer in the priesthood program, that she came to assist him in moving out. § 87(2)(b) told § 87(2)(b) that he was not going to talk to her anymore. § 87(2)(b) then noticed that the security guard was recording him on his cellphone and closed the door. Approximately 15 minutes later, at 9:30 a.m., § 87(2)(b) heard a knock on his door. § 87(2)(b) opened the door, saw five police officers, and took his phone out, and without unlocking it, began recording. An officer, who § 87(2)(b) did not recall, told § 87(2)(b) that someone called them and reported that § 87(2)(b) said that he was going to kill himself. § 87(2)(b) told the officers that he did not make any statements indicating a desire to harm himself. An officer asked § 87(2)(b) to step out of the room into the hallway, which he did. § 87(2)(b) placed his phone in his pocket but kept it recording. The officers placed § 87(2)(b) in handcuffs in the hallway. After § 87(2)(b) was in handcuffs, Sgt. Milentijevic entered all of § 87(2)(b)'s pockets. Sgt. Milentijevic removed § 87(2)(b)'s phone and keys from his pocket. Later in the incident, Sgt. Milentijevic brought § 87(2)(b) downstairs to an ambulance where EMTs asked him if he made any statements that he wanted to harm himself. § 87(2)(b) denied making any such statements, but EMTs still took § 87(2)(b) to the hospital. (**Board Review 02**).

§ 87(2)(b) was asked to fill out a HIPAA form but did not return the signed document to the investigation, thus EMTs could not be identified or interviewed.

§ 87(2)(b) testified that she and a security guard knocked on § 87(2)(b)'s door and attempted to speak to him about his plans to move on from the parish. § 87(2)(b) became upset and slammed the door in her face. § 87(2)(b) knocked on § 87(2)(b)'s door but did not hear anything. Since this was the first time that she had met § 87(2)(b) she called § 87(2)(b) who was friendly with § 87(2)(b) and asked him to call § 87(2)(b) and attempt to

talk to him. § 87(2)(b) called § 87(2)(b) back and told her that § 87(2)(b) stated to him, “If I can’t become a priest I have no reason to live.” This statement, in conjunction with the fact that § 87(2)(b) was quiet and not answering, made § 87(2)(b) worried that § 87(2)(b) was harming himself. § 87(2)(b) asked the security guard to call 911 **(Board Review 03)**.

Sgt. Milentijevic testified that he received a call regarding a man named § 87(2)(b) who said that if he could not be a priest that that he would kill himself before locking himself in a room. Upon arriving at the church, a staff member led the officers to § 87(2)(b)’s room. Sgt. Milentijevic knocked on § 87(2)(b)’s door, said he was police, and instructed § 87(2)(b) to open the door. § 87(2)(b) opened the door. Sgt. Milentijevic asked § 87(2)(b) to step out of the room into the public hallway and he complied. Sgt. Milentijevic placed § 87(2)(b) in handcuffs to remove him to the hospital as an EDP, based on the information that he received from the church about § 87(2)(b) stating that he wanted to harm himself. Sgt. Milentijevic entered and searched § 87(2)(b)’s pants pockets for weapons. § 87(2)(b) only had a phone and his keys on his person. Sgt. Milentijevic did not have any specific concern that § 87(2)(b) had a weapon on his person but given the nature of the call was for § 87(2)(b) being suicidal, Sgt. Milentijevic wanted to make sure. It is procedure for officers to search EDPs prior to EMS transport **(Board Review 04)**.

Sgt. Milentijevic’s BWC was consistent with his testimony. Starting at the 03:20 mark of the timestamp visible at the bottom of the screen, § 87(2)(b) opens the door and Sgt. Milentijevic orders him to step out into the public hallway. § 87(2)(b) is calm and complies. Once in the hallway, Sgt. Milentijevic handcuffs § 87(2)(b) and the officers tell him that he is being handcuffed for his safety. Sgt. Milentijevic then tells § 87(2)(b) that he has to go to the hospital. The officers then take § 87(2)(b) out of the building **(Board Review 07)**.

None of the BWC footage captures § 87(2)(b)’s conversation with the EMTs inside of the ambulance **(Board Review 01)**.

The EVENT documentation shows that a 911 call was placed stating that a man named § 87(2)(b) had suicidal thoughts and locked himself in his room **(Board Review 12)**.

An emotionally disturbed person as a “person who appears to be mentally ill or temporarily deranged” who must be taken into protective custody if officers reasonably believe that the person is likely to injure themselves or others. The procedure notes that officers should attempt to slow the pace of the incident, establish dialogue with the emotionally disturbed person while awaiting specialized personnel, have the emotionally disturbed person removed to a hospital by ambulance, and ride in the body of the ambulance with the emotionally disturbed person. Additionally, officers may restrain the individual if appropriate and remove any property that is dangerous to life or will aid escape. NYPD Patrol Guide, Procedure 221-13 **(Board Review 05)**.

§ 87(2)(b) complained that Sgt. Milentijevic forcibly removed him to the hospital and searched his person. § 87(2)(b) testified that she heard from § 87(2)(b) that § 87(2)(b) threatened to harm himself and reported it to 911. Sgt. Milentijevic’s testimony was consistent with § 87(2)(b) and he testified that he removed § 87(2)(b) as an EDP because he received information that § 87(2)(b) threatened to harm himself. The BWC confirms that Sgt. Milentijevic knocked on § 87(2)(b)’s door, asked him to step out, placed him in handcuffs, and told him that he had to go to the hospital before taking him outside to an ambulance. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: Sergeant Nick Milentijevic entered § 87(2)(b) in Queens.

It is undisputed that after § 87(2)(b) was handcuffed in the hallway and searched, that Sgt. Milentijevic took § 87(2)(b)'s phone, entered § 87(2)(b)'s room, and placed the phone on a dresser before locking § 87(2)(b)'s door.

Sgt. Milentijevic testified that he entered § 87(2)(b)'s room and placed his phone onto his dresser. The dresser was just past the threshold of the doorway. Sgt. Milentijevic only took one step into the room to get to the dresser. Sgt. Milentijevic then exited the room and locked the door. Sgt. Milentijevic did not look at anything else in § 87(2)(b)'s room. Sgt. Milentijevic took § 87(2)(b)'s phone because when an individual goes for a psychiatric evaluation, the hospital takes all the patient's property. § 87(2)(b) could have taken his phone with him, and the hospital would have taken it and returned it to § 87(2)(b) when he was released, but Sgt. Milentijevic felt it was better for § 87(2)(b) if the property was secured in his room as it could potentially be lost at the hospital. Sgt. Milentijevic only entered § 87(2)(b)'s room to place his phone down and to secure the door (**Board Review 04**).

Officers may only conduct warrantless entries into homes under the following circumstances: 1) there are reasonable grounds to believe an emergency is at hand and an immediate need to protect life, 2) the search must not be primarily motivated by intent to arrest or to seize evidence, and 3) there must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched *People v. Doll*, 21 N.Y.3d 665 (2013),. (**Board Review 06**)

It is undisputed that after § 87(2)(b) was in custody, that Sgt. Milentijevic entered his room to place his phone on the dresser before securing the door. Sgt. Milentijevic testified that he entered § 87(2)(b)'s room because he thought it would be best for § 87(2)(b)'s phone to be secure in his room as opposed to at the hospital. § 87(2)(g)

§ 87(2)(g)

Allegation D – Abuse of Authority: Sergeant Nick Milentijevic searched § 87(2)(b)'s recording device.

Allegation E – Abuse of Authority: Sergeant Nick Milentijevic deleted information on § 87(2)(b)'s electronic device.

§ 87(2)(b) testified that when he returned home, the video that he recorded of the officers was no longer on his phone, which was a Samsung S20, and he believed that Sgt. Milentijevic deleted the video. During the interview, which took place 14 days after the incident, § 87(2)(b) checked his “deleted photos” album on his phone for the video that Sgt. Milentijevic allegedly deleted. § 87(2)(b) confirmed that the folder noted that it retained deleted photos and videos for 30 days. Despite the interview happening less than 30 days after the incident, the video was not inside of the folder **(Board Review 02)**.

Sgt. Milentijevic’s BWC footage does not show him looking through § 87(2)(b)’s phone, though his hands are not visible during the time that he had § 87(2)(b)’s phone **(Board Review 07)**.

According to Samsung.com, deleted photos and videos are automatically kept in the trash folder for 30 days before they are deleted forever **(Board Review 08)**.

Sgt. Milentijevic denied entering § 87(2)(b)’s phone and deleting any videos **(Board Review 04)**.

§ 87(2)(g)
According to Samsung, all deleted photos and videos are preserved in the trash folder for 30 days. § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party **(Board Review 09)**.
- Sgt. Milentijevic has been a member-of-service for 19 years and has been a subject in five additional CCRB complaints and 11 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming unlawful arrest, false imprisonment, and injury to left and left pinky finger. § 87(2)(b) did not list a dollar amount claimed as redress **(Board Review 10)**. There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 06

Investigator: Inv. Thomas Juliano Inv. Thomas Juliano 02/09/2022
Signature Print Title & Name Date

Squad Leader: Jessica Pena IM Jessica Pena 7/1/2022
Signature Print Title & Name Date

